

M/S Hotel Pride Inn v. Purvanchal Vidhut Vitrana Nigam Ltd. and Another

High Court of Judicature at Allahabad · Division Bench · 22 May 2023 · 2023:AHC:111781-DB · WRIT - C No. 16127 of 2023 · **Disposed; liberty to file objection under clause 6.5.**

HEADNOTE

Electricity — U.P. Electricity Supply Code, 2005, clause 6.5 — Consumer disputed an MRI-based bill after tampering was found in the apparatus and sought a check meter with revision under clauses 5.6(b)(ii) and 5.7(d), plus a restraint on adding Rs. 2,02,581 — Held, an objection under clause 6.5 is an efficacious alternative remedy — Writ jurisdiction declined and the petition disposed of with liberty to file that objection.

FACTUAL SUMMARY

M/S Hotel Pride Inn disputed a bill of Purvanchal Vidhut Vitrana Nigam Ltd. for 22 July 2022 to 12 January 2022, drawn on MRI readings after tampering was found in the apparatus at the hotel. A notice dated 23 January 2023 proposed adding Rs. 2,02,581 to the regular bill. The hotel sought a direction to install a check meter and revise the preceding three months' bill under clauses 5.6(b)(ii) and 5.7(d) of the U.P. Electricity Supply Code, 2005, and a restraint on that addition.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

objection under clause 6.5 as alternate remedy to writ on a disputed bill

HOLDING

A consumer disputing the correctness of a bill issued on MRI readings after tampering was found in the apparatus has an efficacious alternative remedy by way of an objection under clause 6.5 of the U.P. Electricity Supply Code, 2005. The High Court declined to examine that dispute in writ jurisdiction and disposed of the petition with liberty to file the objection. ¶ 3-4

PRINCIPLE TAGS

clause-6.5-alternate-remedy-to-writ The Division Bench refused to examine, in writ, the hotel's challenge to the MRI bill and the proposed addition of Rs. 2,02,581, treating an objection under clause 6.5 as the efficacious alternative remedy and disposing of the petition with liberty to file it. ¶ 3-4

clause-6.5-statutory-remedy-disputed-bill The dispute over correctness of the bill for 22 July 2022 to 12 January 2022, prepared from MRI readings after tampering was found, was left to the statutory objection under clause 6.5 rather than decided on the writ. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER A CHECK METER MUST BE INSTALLED AND THE PRECEDING THREE MONTHS' BILL REVISED UNDER CLAUSES 5.6(B)(II) AND 5.7(D), AND WHETHER RS. 2,02,581 UNDER THE NOTICE DATED 23 JANUARY 2023 MAY BE ADDED TO THE REGULAR BILL.

The Court declined to examine the dispute and reserved liberty to file an objection under clause 6.5. ¶ 3-4